An independently prepared consolidated summary of Articles 1 to 42 of Directive (EU) 2017/1132, as they stand following the transposition of amending Directive (EU) 2025/1132.

TITLE I

GENERAL PROVISIONS AND THE ESTABLISHMENT AND FUNCTIONING OF COMPANIES

CHAPTER I

Subject matter

Article 1

Subject matter

This Directive lays down measures concerning the following:

— the coordination of safeguards which, for the protection of the interests of members and others, are required by Member States of companies within the meaning of the second paragraph of Article 54 of the Treaty, in respect of the formation of public limited liability companies and the maintenance and alteration of their capital, with a view to making such safeguards equivalent,

— the coordination of safeguards which, for the protection of the interests of members and third parties, are required by Member States of companies within the meaning of the second paragraph of Article 54 of the Treaty, in respect of disclosure, the validity of obligations entered into by, and the nullity of, companies limited by shares or otherwise having limited liability, with a view to making such safeguards equivalent,

— a common set of rules on preventive control of company documents and information

— the rules on online formation of companies, on online registration of branches and on online filing of documents and information by companies and branches,

— the disclosure requirements in respect of partnerships,

— the disclosure requirements in respect of branches opened in a Member State by certain types of company governed by the law of another State,

— mergers of public limited liability companies,

— cross-border conversions, cross-border mergers and cross-border divisions of limited liability companies,

— the division of public limited liability companies.

CHAPTER II

Nulity of the company and validity of its obligations

Section 1

Incorporation of the public liability company

Article 2

Scope

1. The coordination measures prescribed by this Section shall apply to the provisions laid down by law, regulation or administrative action in Member States relating to the types of company listed in Annex I.The name for any company of the types listed in Annex I shall comprise or be accompanied by a description which is distinct from the description required of other types of companies.

2. Member States may decide not to apply this Section to investment companies with variable capital and to cooperatives incorporated as one of the types of company listed in Annex I. In so far as the laws of the Member States make use of this option, they shall require such companies to include the words 'investment company with variable capital', or 'cooperative' in all documents indicated in Article 26.

The term 'investment company with variable capital', within the meaning of this Directive, means only those companies:

— the exclusive object of which is to invest their funds in various stocks and shares, land or other assets with the sole aim of spreading investment risks and giving their shareholders the benefit of the results of the management of their assets,
— which offer their own shares for subscription by the public, and
— the statutes of which provide that, within the limits of a minimum and maximum capital, they may at any time issue, redeem or resell their shares.

Article 3

Compulsory information to be provided in the statutes or instruments of incorporation

The statutes or the instrument of incorporation of a company shall always give at least the following information:

(a) the type and name of the company;
(b) the objects of the company;
(c) where the company has no authorised capital, the amount of the subscribed capital;
(d) where the company has an authorised capital, the amount thereof and also the amount of the capital subscribed at the time the company is incorporated or is authorised to commence business, and at the time of any change in the authorised capital, without prejudice to Article 14(e);
(e) in so far as they are not legally determined, the rules governing the number of, and the procedure for, appointing members of the bodies responsible for representing the company vis-à-vis third parties, administration, management, supervision or control of the company and the allocation of powers among those bodies;
(f) the duration of the company, except where this is indefinite.

Article 4

Compulsory information to be provided in the statutes or instruments of incorporation or separate documents

The following information at least shall appear in either the statutes or the instrument of incorporation or a separate document published in accordance with the procedure laid down in the laws of each Member State in accordance with Article 16:

(a) the registered office;
(b) the nominal value of the shares subscribed and, at least once a year, the number thereof;
(c) the number of shares subscribed without stating the nominal value, where such shares may be issued under national law;
(d) the special conditions, if any, limiting the transfer of shares;
(e) where there are several classes of shares, the information referred to in points (b), (c) and (d) for each class and the rights attaching to the shares of each class;
(f) whether the shares are registered or bearer, where national law provides for both types, and any provisions relating to the conversion of such shares unless the procedure is laid down by law;
(g) the amount of the subscribed capital paid up at the time the company is incorporated or is authorised to commence business;
(h) the nominal value of the shares or, where there is no nominal value, the number of shares issued for a consideration other than in cash, together with the nature of the consideration and the name of the person providing the consideration;
(i) the identity of the natural or legal persons or companies or firms by which or in whose name the statutes or the instrument of incorporation, or where the company was not formed at the same time, the drafts of those documents, have been signed;
(j) the total amount, or at least an estimate, of all the costs payable by the company or chargeable to it by reason of its formation and, where appropriate, before the company is authorised to commence business;
(k) any special advantage granted, at the time the company is formed or up to the time it receives authorisation to commence business, to anyone who has taken part in the formation of the company or in transactions leading to the grant of such authorisation.

Article 5

Authorisation for commencing business

1. Where the laws of a Member State prescribe that a company may not commence business without authorisation, they shall also make provision for responsibility for liabilities incurred by or on behalf of the company during the period before such authorisation is granted or refused.
2. Paragraph 1 shall not apply to liabilities under contracts concluded by the company conditionally upon its being granted authorisation to commence business.

Article 6

Multiple-member companies

1. Where the laws of a Member State require a company to be formed by more than one member, the fact that all the shares are held by one person or that the number of members has fallen below the legal minimum after incorporation of the company shall not lead to the automatic dissolution of the company.
2. If, in the cases referred to in paragraph 1, the laws of a Member State permit the company to be wound up by order of the court, the judge having jurisdiction shall be able to give the company sufficient time to regularise its position.

3. Where a winding-up order as referred to in paragraph 2 is made, the company shall enter into liquidation.

Section 2

Nullity of the limited liability company and validity of its obligations

Article 7

General provisions and joint and several liability

1. The coordination measures prescribed by this Section shall apply to the laws, regulations and administrative provisions of the Member States relating to the types of companies listed in Annex II and, where specified, *mutatis mutandis* to the types of companies listed in Annex IIB.
2. If, before a company being formed has acquired legal personality, action has been carried out in its name and the company does not assume the obligations arising from such action, the persons who acted shall, without limit, be jointly and severally liable therefor, unless otherwise agreed.

Article 8

Effects of disclosure with respect to third parties

Completion of the formalities of disclosure of the particulars concerning the persons who, as an organ of the company, are authorised to represent it, shall constitute a bar to any irregularity in their appointment being relied upon as against third parties, unless the company proves that such third parties had knowledge thereof.

Article 9

Acts of the organs of a company and its representation

1. Acts done by the organs of the company shall be binding upon it even if those acts are not within the objects of the company, unless such acts exceed the powers that the law confers or allows to be conferred on those organs.

However, Member States may provide that the company shall not be bound where such acts are outside the objects of the company, if it proves that the third party knew that the act was outside those objects or could not in view of the circumstances have been unaware of it. Disclosure of the statutes shall not of itself be sufficient proof thereof.
2. The limits on the powers of the organs of the company, arising under the statutes or from a decision of the competent organs, may not be relied on as against third parties, even if they have been disclosed.
3. If national law provides that authority to represent a company may, in derogation from the legal rules governing the subject, be conferred by the statutes on a single person or on several persons acting jointly, that law may provide that such a provision in the statutes may be relied on as against third parties on condition that it relates to the general power of representation; the question whether such a provision in the statutes can be relied on as against third parties shall be governed by Article 16.

Article 10

Preventive control

1. Member States shall provide for preventive administrative, judicial or notarial control, or any combination thereof, of the instrument of constitution and statutes of companies listed in Annexes II and IIB at the time of their formation, and of any amendments to those documents. That requirement shall be without prejudice to national laws that, in accordance with Member States' legal systems, require that those documents be drawn up and certified in due legal form.

2. Member States shall ensure that their laws on the formation of companies listed in Annexes II and IIB lay down a procedure for the legality check of a company's instrument of constitution, and of its statutes if they are contained in a separate instrument. Member States shall ensure that a legality check is also carried out in the case of any amendment of those documents.

Through the legality check referred to in the first subparagraph, it shall be verified at least that:

(a) the formal requirements for the instrument of constitution, and for the statutes if they are contained in a separate instrument, are fulfilled and, where templates referred to in Article 13h are used, that they are used correctly;
(b) the mandatory minimum content is included;
(c) the substantive legal requirements are met; and
(d) the contributions, whether by way of payment in cash or contribution in kind, have been provided for, in accordance with national law.

3. Where, for the formation, or at the time of registration, of companies listed in Annex IIB, national law does not require the drawing up of instruments of constitution and statutes, the procedure for the legality check shall include formal and substantive checks in respect of the documents or information required under national law to apply for the entry of such companies in the register.

4. Paragraphs 1, 2 and 3 shall apply to fully online procedures as well as to procedures that are not fully online.

Article 11

Conditions for nullity of a company

The laws of the Member States may not provide for the nullity of companies otherwise than in accordance with the following provisions:

(a) nullity must be ordered by decision of a court of law;
(b) nullity may be ordered only on the grounds:
  (i) that no instrument of constitution was executed or that the rules of preventive control or the requisite legal formalities were not complied with;
  (ii) that the objects of the company are unlawful or contrary to public policy;
  (iii) that the instrument of constitution or the statutes do not state the name of the company, the amount of the individual subscriptions of capital, the total amount of the capital subscribed or the objects of the company;
  (iv) of failure to comply with provisions of national law concerning the minimum amount of capital to be paid up;
  (v) of the incapacity of all the founder members;
  (vi) that, contrary to the national law governing the company, the number of founder members is less than two.

Apart from the grounds of nullity referred to in the first paragraph, a company shall not be subject to any cause of non-existence, absolute nullity, relative nullity or declaration of nullity.

Article 12

Consequences of nullity

1. The question whether a decision of nullity pronounced by a court of law may be relied on as against third parties shall be governed by Article 16. Where the national law entitles a third party to challenge the decision, he may do so only within six months of public notice of the decision of the court being given.
2. Nullity shall entail the winding-up of the company, as may dissolution.
3. Nullity shall not of itself affect the validity of any commitments entered into by or with the company, without prejudice to the consequences of the company's being wound up.
4. The laws of each Member State may make provision for the consequences of nullity as between members of the company.
5. Holders of shares in the capital of a company shall remain obliged to pay up the capital agreed to be subscribed by them but which has not been paid up, to the extent that commitments entered into with creditors so require.

CHAPTER III

Online and other procedures (formation, registration and filing), disclosure and registers

Section 1

General provisions

Article 13

Scope

The coordination measures prescribed by this Section and by Section 1A shall apply to the laws, regulations and administrative provisions of the Member States relating to the types of companies listed in Annex II and, where specified, to the types of companies listed in Annexes I, IIA and IIB.

Article 13a

Definitions

For the purposes of this Chapter:

(1) 'electronic identification means' means an electronic identification means as defined in point (2) of Article 3 of Regulation (EU) No 910/2014 of the European Parliament and of the Council ([1])

(2) 'electronic identification scheme' means an electronic identification scheme as defined in point (4) of Article 3 of Regulation (EU) No 910/2014;

(3) 'electronic means' means electronic equipment used for the processing, including digital compression, and the storage of data, and through which information is initially sent and received at its destination; that information being entirely

transmitted, conveyed and received in a manner to be determined by Member States;

(4) 'formation' means the whole process of establishing a company in accordance with national law, including the drawing up of the company's instrument of constitution and all the necessary steps for the entry of the company in the register;

(5) 'registration of a branch' means a process leading to disclosure of documents and information relating to a branch newly opened in a Member State;

(6) 'template' means a model for the instrument of constitution of a company which is drawn up by Member States in compliance with national law and is used for the online formation of a company in accordance with Article 13g.

(7) "parent company" means a company which controls one or more subsidiary companies;

(8) "ultimate parent company" means a parent company which is not controlled by another company;

(9) "intermediate parent company" means a parent company governed by the law of a Member State, which is not controlled by another company governed by the law of a Member State, and which is not an ultimate parent company;

(10) "subsidiary company" means a company controlled by a parent company;

(11) "group" means an ultimate parent company and all of its subsidiary companies;

(12) "legalisation" means the formality for certifying the authenticity of a public office holder's signature on a document, the capacity in which the person signing that document has acted and, where appropriate, the identity of the seal or stamp which that document bears;

(13) "similar formality" means the addition of the certificate provided for by the Apostille Convention.

Article 13b

Recognition of identification means for the purposes of online procedures

1. Member States shall ensure that the following electronic identification means can be used by applicants who are Union citizens in the online procedures referred to in this Chapter:

(a) an electronic identification means issued under an electronic identification scheme approved by their own Member State;

(b) an electronic identification means issued in another Member State and recognised for the purpose of cross-border authentication in accordance with Article 6 of Regulation (EU) No 910/2014.

(c) a European Digital Identity Wallet as provided for in Regulation (EU) 2024/1183 of the European Parliament and of the Council

2. Member States may refuse to recognise electronic identification means where the assurance levels of those electronic identification means do not comply with the conditions set out in Article 6(1) of Regulation (EU) No 910/2014.

3. All identification means recognised by Member States shall be made publicly available.

4. Where justified by reason of the public interest in preventing identity misuse or alteration, Member States may, for the purposes of verifying an applicant's identity, take measures which could require the physical presence of that applicant before any authority or person or body mandated under national law to deal with any aspect of the online procedures referred to in this Chapter, including the drawing up of the

instrument of constitution of a company. Member States shall ensure that the physical presence of an applicant may only be required on a case-by-case basis where there are reasons to suspect identity falsification, and that any other steps of the procedure can be completed online.

Article 13c

General provisions on online procedures

1. This Directive shall be without prejudice to national laws that, in accordance with Member States' legal systems and legal traditions, designate any authority or person or body mandated under national law to deal with any aspect of online formation of companies, online registration of branches and online filing of documents and information.
2. This Directive shall also be without prejudice to the procedures and requirements laid down by national law, including those relating to legal procedures for the drawing up of instruments of constitution, provided that online formation of a company, as referred to in Article 13g, and online registration of a branch, as referred to in Article 28a, as well as online filing of documents and information, as referred to in Articles 13j and 28b, is possible.
The first subparagraph of this paragraph shall apply without prejudice to the rules on preventive control in Article 10.
3. The requirements under applicable national law concerning the authenticity, accuracy, reliability, trustworthiness and the appropriate legal form of documents or information that are submitted shall remain unaffected by this Directive, provided that online formation, as referred to in Article 13g, and online registration of a branch, as referred to in Article 28a, as well as online filing of documents and information, as referred to in Articles 13j and 28b, is possible.
The first subparagraph of this paragraph shall apply without prejudice to Articles 16b, 16c, 16d and 16g

Article 13d

Fees for online procedures

1. Member States shall ensure that the rules on fees applicable to the online procedures referred to in this Chapter are transparent and are applied in a non-discriminatory manner.
2. Any fees for online procedures charged by the registers referred to in Article 16 shall not exceed the recovery of the costs of providing such services.

Article 13e

Payments

Where the completion of a procedure laid down in this Chapter requires a payment, Member States shall ensure that that payment can be made by means of a widely available online payment service that can be used for cross-border payments, that permits identification of the person that made the payment and is provided by a financial institution or payment service provider established in a Member State.

Article 13f

Information requirements

Member States shall ensure that concise and user-friendly information, provided free of charge and at least in a language broadly understood by the largest possible number of cross-border users, is made available on registration portals or websites that are accessible by means of the Single Digital Gateway to assist in the formation of companies and the registration of branches. The information shall cover at least the following:

(a) rules on the formation of companies, including online procedures referred to in Articles 13g and 13j, and requirements relating to the use of templates and to other formation documents, identification of persons, the use of languages and to applicable fees;

(b) rules on the registration of branches, including online procedures referred to in Articles 28a and 28b, and requirements relating to registration documents, identification of persons and the use of languages;

(c) an outline of the applicable rules on becoming a member of the administrative body, the management body or the supervisory body of a company, including of the rules on disqualification of directors, and on the authorities or bodies responsible for keeping information about disqualified directors;

(d) an outline of the powers and responsibilities of the administrative body, the management body and the supervisory body of a company, including the authority to represent a company in dealings with third parties.

(e) rules referred to in Article 15 on the filing of changes to the documents and information in the registers referred to in Article 16 and on keeping those documents and information up to date.

Member States shall ensure that the information referred to in the first paragraph includes, *mutatis mutandis*, information also in relation to companies listed in Annex IIB.

Section 1A

Online formation, online filing and disclosure

Article 13g

Online formation of companies

1. Member States shall ensure that the online formation of companies may be carried out fully online without the necessity for the applicants to appear in person before any authority or person or body mandated under national law to deal with any aspect of the online formation of companies, including drawing up the instrument of constitution of a company, subject to the provisions laid down in Article 13b(4) and paragraph (8) of this Article.

However, Member States may decide not to provide for online formation procedures for types of companies other than those listed in Annex IIA.

2. Member States shall lay down detailed rules for the online formation of companies, including rules on the use of templates as referred to in Article 13h, and on the documents and information required for the formation of a company. As part of those rules, Member States shall ensure that such online formation may be carried out by submitting documents or information in electronic form, including electronic copies of the documents and information referred to in Article 16a(4).

2a. Member States shall ensure that, where a company listed in Annex II or IIB forms a company in another Member State, that company is not subject to requests to provide

documents and information relevant for the formation procedure that are available in the register of the Member State where that company is registered. Member States shall ensure that the register of the Member State where the company is being formed retrieves such documents and information by means of exchange of information through the system of interconnection of registers referred to in Article 22. That register may retrieve the EU Company Certificate under Article 16b. The register of the Member State where the company is being formed may also directly access documents and information that are available in the system of interconnection of registers via the portal, or in the register of the Member State in which the founder company is registered.

Where any authority or person or body is mandated under national law to deal with any aspect of the formation of a company, and the documents and information referred to in the first subparagraph are needed for the performance of such tasks, the register of the Member State where the company is being formed shall, upon request, provide the documents and the information retrieved pursuant to the first subparagraph to that authority, person or body, unless such documents and information are publicly available free of charge through the system of interconnection of registers.

3. The rules referred to in paragraph 2 shall at least provide for the following:

(a) the procedures to ensure that the applicants have the necessary legal capacity and have authority to represent the company;

(b) the means to verify the identity of the applicants in accordance with Article 13b;

(c) the requirements for the applicants to use trust services referred to in Regulation (EU) No 910/2014;

(d) the requirements to verify the legality of the object of the company in accordance with national law;

(e) the requirements to verify the legality of the name of the company in accordance with national law;

(f) the procedures to verify the appointment of directors.

4. The rules referred to in paragraph 2 may, in particular, also provide for the following:

(b) the consequences of the disqualification of a director by the competent authority in any Member State;

(c) the role of a notary or any other person or body mandated under national law to deal with any aspect of the online formation of a company;

(d) the exclusion of online formation in cases where the share capital of the company is paid by way of contributions in kind.

5. Member States shall not make the online formation of a company conditional on obtaining a licence or authorisation before the company is registered, unless such a condition is indispensable for the proper oversight laid down in national law of certain activities.

6. Member States shall ensure that where the payment of share capital is required as part of the procedure to form a company, such payment can be made online, in accordance with Article 13e, to a bank account of a bank operating in the Union. In addition, Member States shall ensure that proof of such payments can also be provided online.

7. Member States shall ensure that the online formation is completed within five working days where a company is formed exclusively by natural persons who use the

templates referred to in Article 13h, or within ten working days in other cases, from the later of the following:

(a) the date of the completion of all formalities required for the online formation, including the receipt of all documents and information, which comply with national law, by an authority or a person or body mandated under national law to deal with any aspect of the formation of a company;

(b) the date of the payment of a registration fee, the payment in cash for share capital, or the payment for the share capital by way of a contribution in kind, as provided for under national law.

Where it is not possible to complete the procedure within the deadlines referred to in this paragraph, Member States shall ensure that the applicant is notified of the reasons for the delay.

8. Where justified by reason of the public interest in ensuring compliance with the rules on legal capacity and on the authority of applicants to represent a company, any authority or person or body mandated under national law to deal with any aspect of the online formation of a company, including the drawing up of the instrument of constitution, may request the physical presence of the applicant. Member States shall ensure that, in such cases, the physical presence of an applicant may only be required on a case-by-case basis where there are reasons to suspect non-compliance with the rules referred to in point (a) of paragraph 3. Member States shall ensure that any other steps of the procedure can nonetheless be completed online.

Article 13h

Templates for online formation of companies

1. Member States shall make templates available, for the types of companies listed in Annex IIA, on registration portals or websites that are accessible by means of the Single Digital Gateway. Member States may also make templates available online for the formation of other types of companies.

2. Member States shall ensure that the templates, referred to in paragraph 1 of this Article, may be used by applicants as part of the online formation procedure referred to in Article 13g.

This Directive shall not affect any requirement under national law to have the drawing up of instruments of constitution done in due legal form, as long as the online formation referred to in Article 13g is possible.

3. Member States shall at least make the templates available in an official Union language broadly understood by the largest possible number of cross-border users. The availability of templates in languages other than the official language or languages of the Member State concerned shall be for information purposes only, unless that Member State decides that it is also possible to form a company with templates in such other languages.

4. The content of the templates shall be governed by national law.

Article 13i

Disqualified directors

1. Member States shall ensure that they have rules on disqualification of directors. Those rules shall include providing for the possibility to take into account any

disqualification that is in force, or information relevant for disqualification, in another Member State. For the purpose of this Article, directors shall at least include the persons referred to in point (i) of Article 14(d).

2. Member States may require that persons applying to become directors declare whether they are aware of any circumstances which could lead to a disqualification in the Member State concerned.

Member States may refuse the appointment of a person as a director of a company where that person is currently disqualified from acting as a director in another Member State.

3. Member States shall ensure that they are able to reply to a request from another Member State for information relevant for the disqualification of directors under the law of the Member State replying to the request.

4. In order to reply to a request referred to in paragraph 3 of this Article, Member States shall at least make the necessary arrangements to ensure that they are able to provide without delay information on whether a given person is disqualified or is recorded in any of their registers that contain information relevant for disqualification of directors, by means of the system referred to in Article 22. Member States may also exchange further information, such as on the period and grounds of disqualification. Such exchange shall be governed by national law.

5. The Commission shall lay down detailed arrangements and technical details for the exchange of the information referred to in paragraph 4 of this Article, by means of the implementing acts referred to in Article 24.

6. Paragraphs 1 to 5 of this Article shall apply *mutatis mutandis* where a company files information concerning the appointment of a new director in the register referred to in Article 16.

7. The personal data of persons referred to in this Article shall be processed in accordance with Regulation (EU) 2016/679 and national law, in order to enable the authority or the person or body mandated under national law to assess necessary information relating to the disqualification of a person as a director, with a view to preventing fraudulent or other abusive behaviour and ensuring that all persons interacting with companies or branches are protected.

Member States shall ensure that the registers referred to in Article 16, authorities or persons or bodies mandated under national law to deal with any aspect of online procedures do not store personal data transmitted for the purposes of this Article any longer than is necessary, and in any event no longer than any personal data related to the formation of a company, the registration of a branch or a filing by a company or branch are stored.

Article 13j

Online filing of company documents and information

1. Member States shall ensure that documents and information, including any changes thereto, can be filed online with the register where the company is registered. This requirement shall also apply to companies listed in Annex IIB. Member States shall ensure that such filing can be completed online in its entirety without the necessity for an applicant to appear in person before any authority or person or body mandated under national law to deal with the online filing, subject to the provisions laid down in Article 13b(4) and, where applicable, Article 13g(8).

2. Member States shall ensure that the origin and integrity of the documents filed online may be verified electronically.
3. Member States may require that certain companies or that all companies file certain or all of the documents and information referred to in paragraph 1 online.
4. Article 10(1), (2) and (3) and Article 13g(2), (3), (4) and (5) shall apply *mutatis mutandis* to the online filing of documents and information. Article 10(1), (2) and (3) shall apply to the documents and information referred to in that Article.
5. Member States may continue to allow forms of filing other than those referred to in paragraph 1, including by electronic or by paper means, by companies, by notaries or by any other persons or bodies mandated under national law to deal with such forms of filing.

Article 13k

Other forms of formation of companies and of filing of documents and information

1. The rules laid down in Article 13c, Article 13g(2a), Article 13g(3), points (a), (d), (e) and (f), Article 13g(4), points (b) and (c), Article 13g(5) and (7), and Article 28a(5a) shall apply *mutatis mutandis* to the forms of formation of the companies listed in Annexes II and IIB that are not fully online.
Member States shall ensure that rules are laid down to verify the identity of applicants in the case of such other forms of formation of companies.
2. Article 10(1), (2) and (3) and Article 13g(2), (3), (4) and (5) shall apply *mutatis mutandis* to any form of filing of documents and information that is not fully online by companies listed in Annexes II and IIB. Article 10(1), (2) and (3) shall apply to the documents referred to in that Article.'

Article 14

Documents and information to be disclosed by limited liability companies

Member States shall take the measures required to ensure compulsory disclosure by companies of at least the following documents and particulars:

(a) the instrument of constitution, and the statutes if they are contained in a separate instrument;

(b) any amendments to the instruments referred to in point (a), including any extension of the duration of the company;

(c) after every amendment of the instrument of constitution or of the statutes, the complete text of the instrument or statutes as amended to date;

(d) the appointment, termination of office and particulars of the persons who either as a body constituted pursuant to law or as members of any such body:
  (i) are authorised to represent the company in dealings with third parties and in legal proceedings; it shall be apparent from the disclosure whether the persons authorised to represent the company may do so alone or are required to act jointly;
  (ii) take part in the administration, supervision or control of the company;

(e) at least once a year, the amount of the capital subscribed, where the instrument of constitution or the statutes mention an authorised capital, unless any increase in the capital subscribed necessitates an amendment of the statutes;

(f) the accounting documents for each financial year which are required to be published in accordance with Council Directives 86/635/EEC ([2]) and 91/674/EEC ([3]) and Directive 2013/34/EU of the European Parliament and of the Council ([4]);

(g) any change of the registered office of the company;

(h) the winding-up of the company;

(i) any declaration of nullity of the company by the courts;

(j) the appointment of liquidators, particulars concerning them, and their respective powers, unless such powers are expressly and exclusively derived from law or from the statutes of the company;

(k) any termination of a liquidation and, in Member States where striking off the register entails legal consequences, the fact of any such striking off.

(l) the object of the company, describing its main activity or activities, which can be expressed using the relevant Statistical Classification of Economic Activities in the European Community (NACE) code, where such code is used for the purposes of the register pursuant to applicable national law, and where the object is recorded in the national register.

Article 14a

Documents and information to be disclosed by partnerships

Member States shall take the measures required to ensure compulsory disclosure by the types of partnerships listed in Annex IIB of at least the following documents and information:

(a) the name of the partnership;

(b) the legal form of the partnership;

(c) the registered office, or equivalent, of the partnership;

(d) the registration number of the partnership;

(e) the maximum amount of liability or of the contribution of each limited partner, where that information is recorded in the national register;

(f) the instrument of constitution, and the statutes if they are contained in a separate instrument, where the filing of those documents with the register is required by national law;

(g) any amendments to the instruments referred to in point (f), including any extension of the duration of the partnership where its duration is limited;

(h) after every amendment of the instrument of constitution or of the statutes referred to in point (f), the complete text of the instrument or statutes as amended to date;

(i) the particulars of the partners, directors or other statutory representatives who are authorised to represent the partnership in dealings with third parties and in legal proceedings, and information as to whether those persons are authorised to represent the partnership alone or are required to act jointly, or, if not applicable, information about the nature and scope of the authorisation of the partners, directors or other representatives to represent the partnership and their particulars;

(j) where different from point (i), the particulars of the general partners and, in the case of limited partnerships, particulars of the limited partners, where particulars of the latter are made publicly available in the national register;

(k) the accounting documents for each financial year which are required to be published in accordance with Directives 86/635/EEC, 91/674/EEC and 2013/34/EU;

(l) the winding-up of the partnership, where that information is recorded in the national register;

(m) any declaration of nullity of the partnership by the courts, where that information is recorded in the national register;

(n) the particulars of the liquidators and their respective powers, where that information is recorded in the national register, unless such powers are expressly and exclusively derived from law or from the statutes of the partnership;

(o) any termination of a liquidation and, in Member States where striking off the register entails legal consequences, the fact of any such striking off, where that information is recorded in the national register.

Article 15

Up-to-date registers

1. Member States shall have in place procedures to ensure that the documents and information regarding companies listed in Annexes II and IIB stored in the registers referred to in Article 16 are kept up to date.

2. The procedures referred to in paragraph 1 shall provide at least that:

(a) any changes to the documents and information regarding companies listed in Annexes II and IIB are to be filed with the register, within a period not exceeding 15 working days from the date those changes were made; this period shall not apply to changes to the accounting documents referred to in Article 14, point (f), and Article 14a point (k);

(b) any changes to the documents and information regarding companies listed in Annexes II and IIB are entered in the register and are disclosed, in accordance with Article 16(3), within 10 working days from the date of completion of all formalities required for the filing of those changes, including the receipt of all documents and information, which comply with national law; exceptionally, that deadline may be extended by 5 working days;

(c) registers may consult other relevant authorities or registers within the procedural framework laid down in national law in order to verify specific company information.

3. Member States shall have in place procedures to verify, where doubts exist, whether companies listed in Annexes II and IIB fulfil the requirements to continue to be registered. The rules governing those procedures shall include the possibility for a company to correct the relevant information within a reasonable period, ensure that the status of a company, such as when it is closed, struck off the register, wound up, dissolved, undergoing insolvency proceedings, economically active or inactive as defined in national law and where it is recorded in the national register, is updated in the register accordingly and, where justified, include a possibility that companies are struck off from the register in line with national law.

Article 16

Disclosure in the register

1. In each Member State, a file shall be opened in a central, commercial or companies register ("the register"), for each of the companies listed in Annexes II and IIB registered therein.

Member States shall ensure that companies listed in Annexes II and IIB have a European unique identifier ("EUID"), as referred to in point (9) of the Annex to Commission Implementing Regulation (EU) 2021/1042 (*3), allowing them to be unequivocally identified in communications between registers through the system of interconnection of registers established in accordance with Article 22 ("the system of interconnection of registers"). That EUID shall comprise, at least, elements making it possible to identify the Member State of the register, the domestic register of origin and the company number in that register and, where appropriate, features to avoid identification errors.

2. All documents and information that are required to be disclosed pursuant to Article 14 shall be kept in the file referred to in paragraph 1 of this Article, or entered directly in the register, and the subject matter of the entries in the register shall be recorded in the file.

All documents and information referred to in Article 14, irrespective of the means by which they are filed, shall be kept in the file in the register or entered directly into it in electronic form. Member States shall ensure that all documents and information that are filed by paper means are converted by the register to electronic form as quickly as possible.

Member States shall ensure that documents and information referred to in Article 14 that were filed by paper means before 31 December 2006 are converted into electronic form by the register upon receipt of an application for disclosure by electronic means.

3. Member States shall ensure that the disclosure of the documents and information referred to in Article 14 is effected by making them publicly available in the register. In addition, Member States may also require that some or all of those documents and information are published in a national gazette designated for that purpose, or by equally effective means. Those means shall entail at least the use of a system whereby the documents or information published can be accessed in chronological order through a central electronic platform. In such cases, the register shall ensure that those documents and information are sent electronically by the register to the national gazette or to a central electronic platform.

4. Member States shall take the necessary measures to avoid any discrepancy between what is in the register and in the file.

Member States that require the publication of documents and information in a national gazette or on a central electronic platform shall take the necessary measures to avoid any discrepancy between what is disclosed in accordance with paragraph 3 and what is published in the gazette or on the platform.

In cases of any discrepancies under this Article, the documents and information made available in the register shall prevail.

5. The documents and information referred to in Article 14 may be relied on by the company as against third parties only after they have been disclosed in accordance with paragraph 3 of this Article, unless the company proves that the third parties had knowledge thereof.

However, with regard to transactions taking place before the sixteenth day following the disclosure, the documents and information shall not be relied on as against third parties who prove that it was impossible for them to have had knowledge thereof.

Third parties may always rely on any documents and information in respect of which the disclosure formalities have not yet been completed, save where non-disclosure causes such documents or information to have no effect.

6. Member States shall ensure that all documents and information submitted as part of the formation of a company, the registration of a branch, or a filing by a company or a branch, is stored by the registers in a machine-readable and searchable format or as structured data;

7. Paragraphs 2 to 6 of this Article shall apply to all documents and information referred to in Article 14a

Article 16a

Access to disclosed information

1. Member States shall ensure that copies of all or any part of the documents and information, referred to in Article 14, may be obtained from the register on application, and that such an application may be submitted to the register by either paper or electronic means.

However, Member States may decide that certain types or parts of the documents and information, which were filed by paper means on or before 31 December 2006, cannot be obtained by electronic means where a specified period has elapsed between the date of filing and the date of the application. Such a specified period shall not be less than 10 years.

2. The price of obtaining a copy of all or any part of the documents and information referred to in Article 14, whether by paper or electronic means, shall not exceed the administrative costs thereof, including the costs of development and maintenance of registers.

3. Electronic and paper copies supplied to an applicant shall be certified as 'true copies' unless the applicant dispenses with such certification.

4. Member States shall ensure that electronic copies and extracts of the documents and information provided by the register have been authenticated by means of trust services referred to in Regulation (EU) No 910/2014, in order to guarantee that the electronic copies or extracts have been provided by the register and that their content is a true copy of the document held by the register or that it is consistent with the information contained therein.

5. Member States shall ensure that electronic copies and extracts of the documents and information provided by the register are compatible with the European Digital Identity Wallet as provided for in Regulation (EU) 2024/1183.

6. This Article shall apply *mutatis mutandis* to copies of all or any part of the documents and information referred to in Article 14a.

Article 16b

EU Company Certificate

1. Member States shall ensure that the registers issue the EU Company Certificates regarding the companies listed in Annexes II and IIB. The EU Company Certificate shall be accepted in all Member States as sufficient evidence, at the time of its issuance, of the

incorporation of the company and of the information listed in paragraphs 2 and 3 of this Article, respectively, which is held by the register in which the company is registered.

2. The EU Company Certificate for the limited liability companies listed in Annex II shall include the following information:

(a) the name or names of the company;
(b) the legal form of the company;
(c) the registration number of the company and the Member State where the company is registered;
(d) the EUID of the company;
(e) the registered office of the company;
(f) the correspondence address of the company, such as its electronic mail or postal address;
(g) the date of registration of the company;
(h) the amount of the subscribed capital of the company, if applicable;
(i) the status of the company, such as when it is closed, struck off the register, wound up, dissolved, undergoing insolvency proceedings, economically active or inactive as defined in national law and where it is recorded in the national register;
(j) the first names, surnames and date of birth, or equivalent information when that date is not recorded in the national register, of any persons who either as a body or as members of any such body are authorised by the company to represent it in dealings with third parties and in legal proceedings, and whether those persons may do so alone or are required to act jointly;
(k) where the persons referred to in point (j) are legal persons, the name, the legal form, the EUID or, where the EUID is not applicable, the registration number;
(l) the object of the company, describing its main activity or activities, which can be expressed using the relevant Statistical Classification of Economic Activities in the European Community (NACE) code, where such code is used for the purposes of the register pursuant to applicable national law, and where the object is recorded in the national register;
(m) the duration of the company, where its duration is limited;
(n) details of the company's website where such details are recorded in the national register;
(o) the date of issue of the company's EU Company Certificate.

3. The EU Company Certificate for partnerships listed in Annex IIB shall include the information referred to in paragraph 2 of this Article, with the exception of points (e), (h) (j) and (k).

The following information shall also be included:

(a) the registered office, or equivalent, of the partnership;
(b) the amount of maximum liability or of the contribution of each limited partner, where that information is recorded in the national register;
(c) the first names, surnames and date of birth, or equivalent information when that date is not recorded in the national register, of the partners, directors or other statutory representatives, who are authorised to represent the partnership in dealings with third parties and in legal proceedings, or, if not applicable, information about the nature and scope of the authorisation of the partners, directors or other representatives to represent the partnership and their particulars;

(d) where the persons referred to in point (c) are legal persons, the name, the legal form, the EUID or, where the EUID is not applicable, the registration number;

(e) where different from points (c) and (d), the first names, surnames and date of birth, or equivalent information when that date is not recorded in the national register, of the general partners, and, in the case of limited partnerships, particulars of the limited partners, where particulars of the latter are made publicly available in the national register;

(f) where the persons referred to in point (e) are legal persons, the name, the legal form, the EUID or, where the EUID is not applicable, the registration number.

4. Member States shall ensure that the EU Company Certificate can be obtained from the register upon an application submitted to the register by electronic or by paper means.

Member States shall ensure that the electronic version of the EU Company Certificate can also be obtained through the system of interconnection of registers.

5. Member States shall ensure that each company listed in Annex II or Annex IIB can obtain its EU Company Certificate in electronic format free of charge unless it causes serious prejudice to the financing of the national registers. In any case, each company shall be able to obtain its EU Company Certificate free of charge at least once per calendar year.

Where a price is charged for obtaining the EU Company Certificate, whether by electronic or by paper means, it shall not exceed the administrative costs thereof, including the costs of development and maintenance of registers.

6. Member States shall ensure that the EU Company Certificate provided by the register in electronic form is authenticated by means of trust services as referred to in Regulation (EU) No 910/2014 in order to guarantee that it has been provided by the register and that its content is a true copy of the information held by the register or that it is consistent with the information contained therein. The EU Company Certificate shall also be compatible with the European Digital Identity Wallet, as provided for in Regulation (EU) 2024/1183.

7. Member States shall ensure that the EU Company Certificate provided by the register in paper form includes the date of issuance, as well as the seal or stamp of the register, or equivalent means of authentication, in order to certify that its content is a true copy of the information held by the register or that it is consistent with the information contained therein, and bears a unique protocol or identification number or similar feature that allows the electronic verification of the origin and authenticity of the document.

8. The Commission shall publish the multilingual template for the EU Company Certificate on the European e-Justice portal ("the portal") in all official languages of the Union.

Article 16c

Digital EU power of attorney

1. Member States shall ensure that, in order to carry out procedures within the scope of this Directive in another Member State, in particular the formation of companies, the registration or closure of branches, and cross-border conversions, mergers and divisions, companies listed in Annexes II and IIB can use a template for the digital EU power of attorney in accordance with this Article to authorise a person to represent the company.

The digital EU power of attorney shall be drawn up, amended or revoked in accordance with national requirements. Such national requirements for drawing up, amending or revoking the digital EU power of attorney shall at least include the verification by courts, notaries or other competent authorities of the identity, legal capacity and authority to represent the company of the person granting, amending or revoking the power of attorney.

Member States shall ensure that the digital EU power of attorney is authenticated by means of trust services as referred to in Regulation (EU) No 910/2014, and that its granting, amendment or revocation is compatible for use with the European Digital Identity Wallet as provided for in Regulation (EU) 2024/1183.

2. The digital EU power of attorney shall be accepted as evidence of the authorised person's entitlement to represent the company as specified in the document.

3. Member States may require that the digital EU power of attorney, any amendment to it, and any revocation of it, is to be filed with a register. In such a case, the fees charged for obtaining access to the information about the digital EU power of attorney shall not exceed the administrative costs thereof, including the costs of development and maintenance of registers.

4. The Commission shall, by means of implementing acts as referred to Article 24(2), point (e), establish the template for the digital EU power of attorney, which shall include at least data fields about the scope of representation, the person authorised to represent the company and the type of representation. The Commission shall publish that template on the portal in all official languages of the Union.

Article 16d

Exemption from legalisation and any similar formality

1. Where copies and extracts of documents and information provided and certified as true copies by a register, including certified translations, are to be presented in another Member State, Member States shall ensure that they are exempted from all forms of legalisation and any similar formality.

The first subparagraph shall apply to electronic copies and extracts of documents and information, including certified translations, where they have been authenticated in accordance with Article 16a(4). It shall also apply to copies and extracts of documents and information, including certified translations, in paper form, where they include their date of issuance as well as the seal or stamp of the register, or equivalent means of authentication, and bear a unique protocol or identification number or similar feature that allows the electronic verification of the origin and authenticity of the document.

2. Member States shall ensure that the EU Company Certificate issued in accordance with Article 16b, the digital EU power of attorney referred to in Article 16c and the pre-conversion, pre-merger and pre-division certificates transmitted in accordance with Articles 86n, 127a and 160n are exempted from all forms of legalisation and any similar formality.

3. Where notarial acts, administrative documents, their certified copies and translations issued in a Member State in the context of the procedures within the scope of this Directive are to be presented in another Member State, Member States shall ensure that they are exempted from all forms of legalisation and any similar formality.

The first subparagraph shall apply to electronic notarial acts, administrative documents, their certified copies and translations where they have been authenticated by means of trust services as referred to in Regulation (EU) No 910/2014. It also applies to notarial acts, administrative documents, their certified copies and translations in paper form where they bear a unique protocol or identification number or similar feature that allows the electronic verification of the origin and authenticity of the document.

Article 16e

Safeguards in cases of reasonable doubt as to origin or authenticity

1. Where the authorities in another Member State to which the copies and extracts of documents and information provided and certified as true copies by a register in accordance with Article 16d(1), or the EU Company Certificate issued in accordance with Article 16b, are presented have a reasonable doubt as to origin or authenticity, including the identity of the seal or stamp, or have reason to consider that a document has been forged or tampered with, they may submit a request for information to the contact point:

(a) linked to the register that provided the copies and extracts of documents and information or issued the EU Company Certificate, or

(b) linked to the register of the Member State of the authority in which the copies and extracts of documents and information or the EU Company Certificate were presented; that register shall verify through the system of interconnection of registers the authenticity of those copies and extracts of documents and information and of that EU Company Certificate with the register that provided or issued them.

Member States shall notify to the Commission the relevant contact points.

2. Requests for information referred to in paragraph 1 shall present the reasons the authority doubts the origin or authenticity of the copies and extracts of documents and information or the EU Company Certificate, in particular in cases where the authority cannot authenticate a copy or extract of documents and information or the EU Company Certificate through electronic verification methods. Every request shall be accompanied by the copy or extract of the document and information or the EU Company Certificate concerned transmitted electronically.

Requests which do not comply with the requirements set out in this paragraph shall be rejected without examination and the authority that submitted the request shall be informed of the rejection through the contact point.

3. Contact points shall reply to requests for information made under paragraph 1 within a period not exceeding 5 working days.

4. The requesting authority may decide not to accept the copies and extracts of documents and information or the EU Company Certificate only if their origin or authenticity is not confirmed by the register from which it requested information pursuant to paragraph 2. In such a case, the requesting authority shall notify those who submitted such documents and information or the EU Company Certificate of that decision without undue delay and no later than 10 working days after receiving the reply from the contact point.

Article 16f

Safeguards in cases of reasonable doubt as to abuse or fraud

1. Where justified by reasons of public interest in order to prevent abuse or fraud, the authorities in another Member State may exceptionally and on a case-by-case basis, where they have reasonable grounds to suspect abuse or fraud, refuse to accept documents or information about a company from a register in another Member State as evidence of the registration of a company or its continued existence, or as evidence in respect of the specific company information that is the subject of suspicion of abuse or fraud.

2. In the cases referred to in paragraph 1, the authorities shall consult the register which provided the document or information. If the document or information is not accepted in a Member State in accordance with this Article, the authorities shall inform the register which provided such document or information.

3. This Article is without prejudice to the application of Article 16(5) and to the possibility for competent authorities to alert the register from which the document or information originates in cases where they consider that the document or information provided to them might contain inadvertent, clerical or other manifest errors, with a view to seeking its possible rectification before relying on the document or information, including for entries in their own register.

Article 16g

Exemption of translation

1. Member States shall endeavour not to require the translation of copies or extracts of documents provided by the register of another Member State including in the situations referred to in Article 13g(2a) and Article 28a(5a), when the specific information needed about a company can be accessed and consulted:

(a) in the EU Company Certificate referred to in Article 16b; or

(b) through the system of interconnection of registers and is identifiable through the explanatory labels referred to in Article 18.

2. Without prejudice to paragraph 1, Member States shall ensure that, where the instruments of constitution and the statutes, if they are contained in a separate instrument, and other documents provided by a register, are to be presented in another Member State, a certified translation is to be required only when justified by the purpose for which the document is to be used, such as to meet a mandatory public disclosure requirement or to be presented in judicial proceedings, and it is strictly necessary.

3. This Article shall be applied without prejudice to Articles 21 and 32.

Article 17

Up-to-date information on national law with regard to the rights of third parties

1. Member States shall ensure that up-to-date information is made available explaining the provisions of national law pursuant to which third parties may rely on information and each type of document referred to in Article 14, in accordance with Article 16(3), (4) and (5).

2. Member States shall provide the information required for publication on the portal in accordance with the portal's rules and technical requirements..
3. The Commission shall publish that information on the portal in all the official languages of the Union.
4. This Article shall also apply to the information on partnerships referred to in Article 14a.

Article 18

Availability of electronic copies of documents and information

1. Electronic copies of the documents and information referred to in Articles 14 and 14a shall also be made publicly available through the system of interconnection of registers. Member States may also make available the documents and information referred to in Articles 14 and 14a for types of companies other than those listed in Annexes II and IIB.

Article 16a(3), (4) and (5) shall apply *mutatis mutandis* to electronic copies of the documents and information made publicly available through the system of interconnection of registers.

2. Member States shall ensure that the documents and information referred to in Articles 14 and 14a, Article 19(2), Article 19a(2) and Article 19b are available through the system of interconnection of registers in a standard message format and accessible by electronic means. Member States shall also ensure that minimum standards for the security of data transmission are respected.

3. The Commission shall provide a search service in all the official languages of the Union in respect of companies registered in Member States, in order to make available through the portal:

(a) the documents and information referred to in Articles 14 and 14a, Article 19(2), Article 19a(2) and Article 19b, including for types of companies other than those listed in Annexes II and IIB, where such documents and information are made available by Member States;

(aa) the documents and information referred to in Articles 86g, 86n, 86p, 123, 127a, 130, 160g, 160n and 160p;

(b) the explanatory labels, available in all the official languages of the Union, listing that information and the types of those documents.

4. Member States shall ensure that, through the system of interconnection of registers, the first names, surnames and date of birth, or equivalent information when that date is not recorded in the national register, of the persons referred to in Article 14, point (d), Article 14a, points (i) and (j), Article 19(2), point (g), Article 19a(2), point (g), Article 30(1), point (e) and Article 36(4), point (f), where such persons are natural persons, are made publicly available.

Where the persons referred to in the first subparagraph of this paragraph are legal persons, the name of the company, its legal form, its EUID or, where the EUID is not applicable, its registration number shall be made publicly available through the system of interconnection of registers.

5. Member States shall ensure that, through the system of interconnection of registers, the first names, surnames and the date of birth, or equivalent information when that date

is not recorded in the national register, of the persons referred to in Article 3 of Directive 2009/102/EC, where such persons are natural persons, are made publicly available.

Where the persons referred to in the first subparagraph of this paragraph are legal persons, the name of the company, its legal form, its EUID or, where the EUID is not applicable, its registration number shall be made publicly available through the system of interconnection of registers.

6. Member States shall ensure that the registers, authorities or persons or bodies mandated under national law to deal with any aspect of the procedures within the scope of this Directive do not store personal data transmitted through the system of interconnection of registers for the purposes of Articles 13g, 28a and 30a, unless otherwise provided for by Union or national law.'

Article 19

Fees chargeable for documents and information as regards limited liability companies

1. The fees charged for obtaining documents and information referred to in Article 14 through the system of interconnection of registers shall not exceed the administrative costs thereof, including the costs of development and maintenance of registers.
2. Member States shall ensure that at least the following information and documents are available free of charge through the system of interconnection of registers:

(a) the name or names and legal form of the company;
(b) the registered office of the company and the Member State where it is registered;
(c) the registration number of the company and its EUID;
(d) details of the company website, where such details are recorded in the national register;
(e) the status of the company, such as when it is closed, struck off the register, wound up, dissolved, economically active or inactive as defined in national law and where recorded in the national registers;
(f) the object of the company, where it is recorded in the national register;
(g) the particulars of any persons who either as a body or as members of any such body are currently authorised by the company to represent it in dealing with third parties and in legal proceedings and information as to whether the persons authorised to represent the company may do so alone or are required to act jointly;
(h) information on any branches opened by the company in another Member State including the name, registration number, EUID and the Member State where the branch is registered.
(i) the average number of employees of the company during the financial year, where national law requires such information to be made available in the company's financial statements and from the moment such information is extractable as data.

3. The exchange of any information through the system of interconnection of registers shall be free of charge for the registers.
4. Member States may decide that the information referred to in points (d), (f) and (i) is to be made available free of charge only for the authorities of other Member States.

Article 19a

Fees chargeable for documents and information as regards partnerships

1. The fees charged for obtaining the documents and information referred to in Article 14a through the system of interconnection of registers shall not exceed the administrative costs thereof, including the costs of development and maintenance of registers.

2. Member States shall ensure that the following documents and information regarding companies listed in Annex IIB are available free of charge through the system of interconnection of registers:

(a) the name and legal form of the partnership;

(b) the registered office of the partnership and the Member State where it is registered;

(c) the registration number of the partnership and its EUID;

(d) details of the partnership website where such details are recorded in the national register;

(e) the status of the partnership, such as when it is closed, struck off the register, wound up, dissolved, economically active or inactive as defined in national law and where it is recorded in the national register;

(f) the object of the partnership, where it is recorded in the national register;

(g) the particulars of partners, directors or other statutory representatives who are authorised to represent the partnership in dealings with third parties and in legal proceedings, and information as to whether the persons authorised to represent the partnership may do so alone or are required to act jointly, or, if not applicable, information about the nature and scope of the authorisation of the partners, directors or other representatives to represent the partnership and their particulars;

(h) information on any branches opened by the partnership in another Member State, including the name, registration number, EUID and the Member State where the branch is registered.

4. Member States may decide that the information referred to in paragraph 2, points (d) and (f), is to be made available free of charge only for the authorities of other Member States.

Article 19b

Information on groups of companies

1. Member States shall ensure that, for the groups for which parent companies listed in Annex II or IIB are required to prepare and publish consolidated financial statements in accordance with Articles 21 to 29 of Directive 2013/34/EU, the following information is available free of charge through the system of interconnection of registers:

(a) (i) where the ultimate parent company is governed by the law of a Member State, the name, legal form and EUID of that ultimate parent company that has drawn up the consolidated financial statements, and the Member State where it is registered; or

(ii) where the ultimate parent company is governed by the law of a third country, either the name of that ultimate parent company that has drawn up the consolidated financial statements, the third country where it is registered and, where available, the registration number and the name of the register or, alternatively, where the intermediate parent company has drawn up the

consolidated financial statements, the name, legal form and EUID of that intermediate parent company and the Member State where it is registered; and

(b) (i) for each subsidiary company governed by the law of a Member State, the information required by Article 28(2), point (a)(i) of Directive 2013/34/EU and Article 19(2), points (a) to (c), and Article 19a(2), points (a) to (c) of this Directive; and

(ii) for each subsidiary company governed by the law of a third country, the information required by Article 28(2), point (a)(i), of Directive 2013/34/EU; in this regard, the information about the registered office includes the third country where the subsidiary company has its registered office and, where available, also the registration number and the name of the register.

2. Member States may provide that the information referred to in paragraph 1 includes the proportion of the capital held between the ultimate parent company and each of the subsidiary companies.

3. Member States shall ensure that the information referred to in paragraphs 1 and 2 is updated in line with new information included in subsequent financial statements

Article 20

Information on the opening and termination of winding-up or insolvency proceedings and on striking-off of a company from the register

1. The register of a company shall, through the system of interconnection of registers, make available, without delay, the information on the opening and termination of any winding-up or insolvency proceedings of the company and on the striking-off of the company from the register, if this entails legal consequences in the Member State of the register of the company.
2. The register of the branch shall, through the system of interconnection of registers, ensure receipt, without delay, of the information referred to in paragraph 1.

Article 21

Language of disclosure and translation of documents and particulars to be disclosed

1. Documents and particulars to be disclosed pursuant to Article 14 shall be drawn up and filed in one of the languages permitted by the language rules applicable in the Member State in which the file referred to in Article 16(1) is opened.
2. In addition to the compulsory disclosure referred to in Article 16, Member States shall allow translations of documents and particulars referred to in Article 14 to be disclosed voluntarily in accordance with Article 16 in any official language(s) of the Union.

Member States may prescribe that the translation of such documents and particulars be certified.

Member States shall take the necessary measures to facilitate access by third parties to the translations voluntarily disclosed.

3. In addition to the compulsory disclosure referred to in Article 16, and to the voluntary disclosure provided for under paragraph 2 of this Article, Member States may allow the documents and particulars concerned to be disclosed, in accordance with Article 16, in any other language(s).

Member States may prescribe that the translation of such documents and particulars be certified.

4. In cases of discrepancy between the documents and particulars disclosed in the official languages of the register and the translation voluntarily disclosed, the latter may not be relied upon as against third parties. Third parties may nevertheless rely on the translations voluntarily disclosed, unless the company proves that the third parties had knowledge of the version which was the subject of the compulsory disclosure.

5. This Article shall apply to Article 14a.

Article 22

System of interconnection of registers

1. A European central platform ('the platform') shall be established.
2. The system of interconnection of registers shall be composed of:

— the registers of Member States,
— the platform,
— the portal serving as the European electronic access point.

3. Member States shall ensure the interoperability of their registers within the system of interconnection of registers via the platform.
4. Member States may establish optional access points to the system of interconnection of registers. They shall notify the Commission without undue delay of the establishment of such access points and of any significant changes to their operation.

The Commission may also establish optional access points to the system of interconnection of registers. Such access points shall consist of systems developed and operated by the Commission or other Union institutions, bodies, offices or agencies in order to perform their administrative functions or to comply with provisions of Union law. The Commission shall notify the Member States without undue delay of the establishment of such access points and of any significant changes to their operation.

5. Access to information from the system of interconnection of registers shall be provided through the portal and through the optional access points established by the Member States and by the Commission.
6. The establishment of the system of interconnection of registers shall not affect existing bilateral agreements concluded between Member States concerning the exchange of information on companies.
7. In accordance with Article 24(2), point (f), the Commission shall establish connections between the system of interconnection of registers, the beneficial ownership registers interconnection provided for in Article 30(10) and Article 31(9) of Directive (EU) 2015/849 of the European Parliament and of the Council (*4) and the insolvency registers interconnection provided for in Article 25(1) of Regulation (EU) 2015/848 of the European Parliament and of the Council (*5).

The establishment of connections in accordance with the first subparagraph shall not alter or circumvent the rules and requirements related to the accessing of the

information concerned, as set out under the relevant frameworks establishing those registers and interconnections.

Article 23

Development and operation of the platform

1. The Commission shall decide to develop and/or operate the platform either by its own means or through a third party.

If the Commission decides to develop and/or operate the platform through a third party, the choice of the third party and the enforcement by the Commission of the agreement concluded with that third party shall be done in accordance with Regulation (EU, Euratom) No 966/2012.

2. If the Commission decides to develop the platform through a third party, it shall, by means of implementing acts, establish the technical specifications for the purpose of the public procurement procedure and the duration of the agreement to be concluded with that third party.

3. If the Commission decides to operate the platform through a third party, it shall, by means of implementing acts, adopt detailed rules on the operational management of the platform.

The operational management of the platform shall include, in particular:

— the supervision of the functioning of the platform,

— the security and protection of data distributed and exchanged using the platform,

— the coordination of relations between Member States' registers and the third party.

The supervision of the functioning of the platform shall be carried out by the Commission.

4. The implementing acts referred to in paragraphs 2 and 3 shall be adopted in accordance with the examination procedure referred to in Article 164(2).

Article 24

Implementing acts

1. By means of implementing acts, the Commission shall adopt the following:

(a) the technical specification defining the methods of communication by electronic means for the purpose of the system of interconnection of registers;

(b) the technical specification of the communication protocols;

(c) the technical measures ensuring the minimum information technology security standards for communication and distribution of information within the system of interconnection of registers;

(d) the technical specification defining the methods of exchange of information between the register of the company and the register of the branch as referred to in Articles 20, 28a, 28c, 30a and 34;

(e) the detailed list of data to be transmitted for the purpose of exchanging information between registers, as referred to in Articles 20, 28a, 28c, 30a and 34;

(ea) the detailed list of data to be transmitted for the purpose of exchanging information between registers and for the purposes of disclosure, as referred to in Articles 86g, 86n, 86p, 123, 127a, 130, 160g, 160n and 160p;

(f) the technical specification defining the structure of the standard message format for the purpose of the exchange of information between the registers, the platform and the portal;
(g) the technical specification defining the set of the data necessary for the platform to perform its functions as well as the method of storage, use and protection of such data;
(h) the technical specification defining the structure and use of the unique identifier for communication between registers;
(i) the specification defining the technical methods of operation of the system of interconnection of registers as regards the distribution and exchange of information, and the specification defining the information technology services, provided by the platform, ensuring the delivery of messages in the relevant language version;
(j) the harmonised criteria for the search service provided by the portal;
(k) the payment modalities, taking into account available payment facilities such as online payment;
(l) the details of the explanatory labels listing the particulars and the types of documents referred to in Article 14;
(m) the technical conditions of availability of services provided by the system of interconnection of registers;
(n) the procedure and technical requirements for the connection of the optional access points to the platform as referred to in Article 22;
(o) the detailed arrangements for and technical details of the exchange between registers of the information referred to in Article 13i.

Those implementing acts shall be adopted in accordance with the examination procedure referred to in Article 164(2).

The Commission shall adopt the implementing acts pursuant to points (d), (e), (n) and (o) by 1 February 2021. The Commission shall adopt the implementing acts referred to in point (ea) by 2 July 2021.

2. By means of implementing acts, the Commission shall also adopt the following:
(a) the detailed list of data and the technical specifications defining the methods of retrieval of information between the register of the founder company and the register of the company being formed as referred to in Article 13g(2a), and between the register of the company and the register of the branch as referred to in Article 28a(5a);
(b) the detailed list of data, the details of explanatory labels and the technical specifications defining the information referred to in Article 14a, Article 19(2), Article 19a(2) and Article 19b to be made available through the system of interconnection of registers;
(c) the technical standards and taxonomy for the documents and information to be filed in accordance with Article 16(6), taking into account the technical standards already in use in Member States' registers;
(d) the technical specifications, including compatibility with the European Digital Identity Wallet as provided for in Regulation (EU) 2024/1183, as well as the taxonomy and the multilingual template for the EU Company Certificate referred to in Article 16b of this Directive;
(e) the technical specifications, including compatibility with the European Digital Identity Wallet as provided for in Regulation (EU) 2024/1183, as well as the

taxonomy and the multilingual template for the digital EU power of attorney referred to in Article 16c;

(f) the technical specifications and detailed list of data defining mutual accessibility between interconnections referred to in Article 22(7), which shall cover the use of the unique identifier for companies attributed in accordance with Article 16;

(g) the technical specifications and detailed list of data defining the verification referred to in Article 16e(1), point (b).

The Commission shall adopt the implementing acts referred to in the first subparagraph by 31 July 2026. Those implementing acts shall be adopted in accordance with the examination procedure referred to in Article 164(2).'

Article 25

Financing

1. The establishment and future development of the platform and the adjustments to the portal resulting from this Directive shall be financed from the general budget of the Union.
2. The maintenance and functioning of the platform shall be financed from the general budget of the Union and may be co-financed by fees for access to the system of interconnection of registers charged to its individual users. Nothing in this paragraph shall affect fees at the national level.
3. By means of delegated acts and in accordance with Article 163, the Commission may adopt rules on whether to co-finance the platform by charging fees, and, in that case, the amount of the fees charged to individual users in accordance with paragraph 2 of this Article.
4. Any fees imposed in accordance with paragraph 2 of this Article shall be without prejudice to the fees, if any, charged by Member States for obtaining documents and particulars as referred to in Article 19(1).
5. Any fees imposed in accordance with paragraph 2 of this Article shall not be charged for obtaining the particulars referred to in Article 19(2)(a), (b) and (c).
6. Each Member State shall bear the costs of adjusting its domestic registers, as well as their maintenance and functioning costs resulting from this Directive.

Article 26

Information on letters and order forms

Member States shall prescribe that letters and order forms, whether they are in paper form or use any other medium, are to state the following particulars:

(a) the information necessary in order to identify the register in which the file referred to in Article 16 is kept, together with the number of the company in that register;

(b) the legal form of the company, the location of its registered office and, where appropriate, the fact that the company is being wound up.

Where, in those documents, mention is made of the capital of the company, the reference shall be to the capital subscribed and paid up.

Member States shall prescribe that company websites are to contain at least the particulars referred to in the first paragraph and, if applicable, a reference to the capital subscribed and paid up.

This Article shall apply *mutatis mutandis* to companies listed in Annex IIB.

Article 27

Persons carrying out disclosure formalities

Each Member State shall determine by which persons the disclosure formalities are to be carried out.

Article 28

Penalties

Member States shall provide for effective, proportionate and dissuasive penalties at least in the case of:

(a) a failure to disclose the documents and information as required by Articles 14 and 14a;

(b) a failure to file changes within the period laid down in Article 15(2), point (a);

(c) an omission from commercial documents or from any company website of the compulsory information provided for in Article 26.

Member States shall take all the measures necessary to ensure that the penalties referred to in the first paragraph are enforced.

Section 2

Registration and disclosure rules applicable to branches of companies from other Member States

Article 28a

Online registration of branches

1. Member States shall ensure that the registration in a Member State of a branch of a company that is governed by the law of another Member State may be fully carried out online without the necessity for the applicants to appear in person before any authority or any person or body mandated under national law to deal with any aspect of the application for registration of branches, subject to Article 13b(4) and *mutatis mutandis* to Article 13g(8).

2. Member States shall lay down detailed rules for the online registration of branches, including rules on the documents and information required to be submitted to a competent authority. As part of those rules, Member States shall ensure that online registration may be carried out by submitting information or documents in electronic form, including electronic copies of the documents and information referred to in Article 16a(4), or by making use of the information or documents previously submitted to a register.

3. The rules referred to in paragraph 2 shall at least provide for the following:

(a) the procedure to ensure that the applicants have the necessary legal capacity and that they have authority to represent the company;

(b) the means for verifying the identity of the person or persons registering the branch or their representatives;

(c) the requirements for the applicants to use the trust services referred to in Regulation (EU) No 910/2014.

4. The rules referred to in paragraph 2 may also provide for procedures to do the following:

(a) verify the legality of the object of the branch;

(b) verify the legality of the name of the branch;

(c) verify the legality of the documents and information submitted for the registration of the branch, with the exception of the documents and information retrieved from the register of the company in accordance with paragraph 5a;

(d) provide for the role of a notary or any other person or body involved in the process of registration of the branch under the applicable national provisions.

5. Member States shall not make the online registration of a branch conditional on obtaining any licence or authorisation before the branch is registered, unless such a condition is indispensable for the proper oversight laid down in national law of certain activities.

5a. Member States shall ensure that, where a company listed in Annexes II or IIB registers a branch in another Member State, that company is not subject to requests to provide documents and information relevant for the registration procedure that are available in the register of the Member State where that company is registered. Member States shall ensure that the register of the Member State where the branch is being registered retrieves such documents and information by means of exchange of information through the system of interconnection of registers. That register may retrieve the EU Company Certificate under Article 16b. The register of the Member State where the branch is being registered may also directly access documents and information that are available in the system of interconnection of registers via the portal, or in the register of the Member State in which the company registering the branch is registered.

Where any authority or person or body is mandated under national law to deal with any aspect of the registration of a branch, and the documents and information referred to in the first subparagraph are needed for the performance of such tasks, the register of the Member State where the branch is being registered shall, upon request, provide the documents and information retrieved pursuant to the first subparagraph to that authority, person or body, unless such documents and information are publicly available free of charge through the system of interconnection of registers.

6. Member States shall ensure that the online registration of a branch is completed within 10 working days of the completion of all formalities, including the receipt of all the necessary documents and information which comply with national law by an authority or a person or body mandated under national law to deal with any aspect of the registration of a branch.

Where it is not possible to register a branch within the deadlines referred to in this paragraph, Member States shall ensure that the applicant is notified of the reasons for the delay.

7. Following the registration of a branch of a company established under the laws of another Member State, the register of the Member State where that branch is registered shall notify the Member State where the company is registered that the branch has been registered by means of the system of interconnection of registers. The Member State where the company is registered shall acknowledge receipt of such notification and shall record the information in their register without delay.

Article 28b

Online filing of documents and information for branches

1. Member States shall ensure that documents and information referred to in Article 30 or any modification thereof may be filed online within the period provided by the laws of the Member State where the branch is established. Member States shall ensure that such filing may be completed online in its entirety without the necessity for the applicants to appear in person before any authority or person or body mandated under national law to deal with the online filing, subject to the provisions laid down in Article 13b(4) and *mutatis mutandis* in Article 13g(8).
2. Article 28a (2) to (5) shall apply *mutatis mutandis* to online filing for branches.
3. Member States may require that certain or all documents and information referred to in paragraph 1 are only filed online.

Article 28c

Closure of branches

Member States shall ensure that, upon receipt of the documents and information referred to in point (h) of Article 30(1), the register of a Member State where a branch of a company is registered informs, by means of the system of interconnection of registers, the register of the Member State where the company is registered that its branch has been closed and struck off the register. The register of the Member State of the company shall acknowledge receipt of such notification also by means of that system and shall record the information without delay.

Article 29

Disclosure of documents and particulars relating to a branch

1. Documents and particulars relating to a branch opened in a Member State by a company of a type listed in Annex II, which is governed by the law of another Member State, shall be disclosed pursuant to the law of the Member State of the branch, in accordance with Article 16.
2. Where disclosure requirements in respect of the branch differ from those in respect of the company, the branch's disclosure requirements shall take precedence with regard to transactions carried out with the branch.
3. The documents and particulars referred to in Article 30(1) shall be made publicly available through the system of interconnection of registers. Article 18 and Article 19(1) shall apply *mutatis mutandis*.
4. Member States shall ensure that branches have a unique identifier allowing them to be unequivocally identified in communications between registers through the system of interconnection of registers. That unique identifier shall comprise, at least, elements making it possible to identify the Member State of the register, the domestic register of origin and the branch number in that register, and, where appropriate, features to avoid identification errors.

Article 30

Documents and particulars to be disclosed

1. The compulsory disclosure provided for in Article 29 shall cover the following documents and particulars only:

(a) the address of the branch;
(b) the activities of the branch;
(c) the register in which the company file referred to in Article 16 is kept, together with the registration number in that register;
(d) the name and legal form of the company and the name of the branch, if that is different from the name of the company;
(e) the appointment, termination of office and particulars of the persons who are authorised to represent the company in dealings with third parties and in legal proceedings:
— as a company organ constituted pursuant to law or as members of any such organ, in accordance with the disclosure by the company as provided for in Article 14(d),
— as permanent representatives of the company for the activities of the branch, with an indication of the extent of their powers;
(f) — the winding-up of the company, the appointment of liquidators, particulars concerning them and their powers and the termination of the liquidation in accordance with disclosure by the company as provided for in Article 14(h), (j) and (k),
— insolvency proceedings, arrangements, compositions, or any analogous proceedings to which the company is subject;
(g) the accounting documents in accordance with Article 31;
(h) the closure of the branch.

2. The Member State in which the branch has been opened may provide for the disclosure, as referred to in Article 29, of

(a) the signature of the persons referred to in points (e) and (f) of paragraph 1 of this Article;
(b) the instruments of constitution and the memorandum and articles of association if they are contained in a separate instrument, in accordance with points (a), (b) and (c) of Article 14, together with amendments to those documents;
(d) an indication of the securities on the company's property situated in that Member State, provided such disclosure relates to the validity of those securities.

Article 30a

Changes to documents and information of the company

The Member State where a company is registered shall notify, by means of the system of interconnection of registers, without delay, the Member State where a branch of the company is registered, in the event that a change has been filed with regard to any of the following:

(a) the company’s name;
(b) the company’s registered office;
(c) the company’s registration number in the register;
(d) the company’s legal form;
(e) the documents and information referred to in points (d) and (f) of Article 14.

Upon receipt of the notification referred to in the first paragraph of this Article, the register in which the branch is registered shall, by means of the system of interconnection of registers, acknowledge receipt of such notification and shall ensure that the documents and information referred to in Article 30(1) are updated without delay.

Article 31

Limits on the compulsory disclosure of accounting documents

The compulsory disclosure provided for by Article 30(1)(g) shall be limited to the accounting documents of the company as drawn up, audited and disclosed pursuant to the law of the Member State by which the company is governed in accordance with Directive 2006/43/EC of the European Parliament and of the Council ([6]) and Directive 2013/34/EU.

Member States may provide that the mandatory disclosure of accounting documents referred to in point (g) of Article 30(1) may be considered fulfilled by the disclosure in the register of the Member State in which the company is registered in accordance with point (f) of Article 14.

Article 32

Language of disclosure and translation of documents to be disclosed

The Member State in which the branch has been opened may stipulate that the documents referred to in Article 30(2)(b) and Article 31 are to be published in another official language of the Union and that the translations of such documents are to be certified.

Article 33

Disclosure in cases of multiple branches in a Member State

Where a company has opened more than one branch in a Member State, the disclosure referred to in Article 30(2)(b) and Article 31 may be made in the register of the branch of the company's choice.

In the case referred to in the first paragraph, compulsory disclosure by the other branches shall cover the particulars of the branch register of which disclosure was made, together with the number of that branch in that register.

Article 34

Information on the opening and termination of winding-up or insolvency proceedings and on striking-off of the company from the register

1. Article 20 shall apply to the register of the company and to the register of the branch respectively.
2. Member States shall determine the procedure to be followed upon receipt of the information referred to in Article 20(1) and (2). Such procedure shall ensure that, where a company has been dissolved or otherwise struck off the register, its branches are likewise struck off the register without undue delay.
3. The second sentence of paragraph 2 shall not apply to branches of companies that have been struck off the register as a consequence of any change in the legal form of the company concerned, a merger or division, or a cross-border transfer of its registered office.

Article 35

Information on letters and order forms

Member States shall prescribe that letters and order forms used by a branch shall state, in addition to the information prescribed by Article 26, the register in which the file in respect of the branch is kept together with the number of the branch in that register.

Section 3

Disclosure rules applicable to branches of companies from third countries

Article 36

Disclosure of documents and particulars relating to a branch

1. Documents and particulars concerning a branch opened in a Member State by a company which is not governed by the law of a Member State but which is of a legal form comparable with the types of company listed in Annex II, shall be disclosed in accordance with the law of the Member State of the branch as laid down in Article 16.
2. Article 29(2) shall apply.
3. The documents and information referred to in Article 37 shall be made publicly available through the system of interconnection of registers. Article 18 and Article 19(1) shall apply *mutatis mutandis*.
4. Member States shall ensure that at least the following documents and information are available free of charge through the system of interconnection of registers:

(a) the name of the company and the name of the branch if that is different from the name of the company;
(b) the legal form of the company;
(c) the law of the State by which the company is governed;
(d) where the law governing the company so provides, the register in which the company is entered and the registration number of the company in that register;
(e) the address of the branch;
(f) the particulars of the persons who are authorised to represent the company in dealings with third parties and in legal proceedings:
— as a company organ constituted pursuant to law or as members of any such organ,
— as permanent representatives of the company for the activities of the branch.
The extent of the powers of the persons authorised to represent the company shall be stated, as well as whether those persons may represent the company alone or are required to act jointly;
(g) the unique identifier of the branch in accordance with paragraph 5.

5. Member States shall apply Article 29(4) *mutatis mutandis* to the branches of companies from third countries.

Article 37

Compulsory documents and particulars to be disclosed

The compulsory disclosure provided for in Article 36 shall cover at least the following documents and particulars:

(a) the address of the branch;
(b) the activities of the branch;
(c) the law of the State by which the company is governed;

(d) where that law so provides, the register in which the company is entered and the registration number of the company in that register;

(e) the instruments of constitution, and memorandum and articles of association if they are contained in a separate instrument, with all amendments to those documents;

(f) the legal form of the company, its principal place of business and its object and, at least annually, the amount of subscribed capital if those particulars are not given in the documents referred to in point (e);

(g) the name of the company and the name of the branch if that is different from the name of the company;

(h) the appointment, termination of office and particulars of the persons who are authorised to represent the company in dealings with third parties and in legal proceedings:

— as a company organ constituted pursuant to law or as members of any such organ,

— as permanent representatives of the company for the activities of the branch.

The extent of the powers of the persons authorised to represent the company shall be stated, as well as whether those persons may represent the company alone or are required to act jointly;

(i) — the winding-up of the company and the appointment of liquidators, particulars concerning them and their powers and the termination of the liquidation,

— insolvency proceedings, arrangements, compositions or any analogous proceedings to which the company is subject;

(j) the accounting documents in accordance with Article 38;

(k) the closure of the branch.

Article 38

Limits of compulsory disclosure of accounting documents

1. The compulsory disclosure provided for by Article 37(j) shall apply to the accounting documents of the company as drawn up, audited and disclosed pursuant to the law of the State which governs the company. Where they are not drawn up in accordance with or in a manner equivalent to Directive 2013/34/EU, Member States may require that accounting documents relating to the activities of the branch be drawn up and disclosed.
2. Articles 32 and 33 shall apply.

Article 39

Information on letters and order forms

Member States shall prescribe that letters and order forms used by a branch state the register in which the file in respect of the branch is kept together with the number of the branch in that register. Where the law of the State by which the company is governed requires entry in a register, the register in which the company is entered, and the registration number of the company in that register shall also be stated.

Section 4

Application and implementing arrangements

Article 40

Penalties

Member States shall provide for effective, proportionate and dissuasive penalties in the event of failure to disclose the matters set out in Articles 29, 30, 31, 36, 37 and 38 and of omission from letters and order forms of the compulsory information provided for in Articles 35 and 39.

Member States shall take all the measures necessary to ensure that those penalties are enforced.

Article 41

Persons carrying out disclosure formalities

Each Member State shall determine who shall carry out the disclosure formalities provided for in Sections 2 and 3.

Article 42

Exemptions to provisions on disclosure of accounting documents for branches

1. Articles 31 and 38 shall not apply to branches opened by credit institutions and financial institutions covered by Council Directive 89/117/EEC ([7]).
2. +Pending subsequent coordination, the Member States need not apply Articles 31 and 38 to branches opened by insurance companies.